as set forth in paragraphs (b) and (c) of this section (cases where the veteran's death resulted from Veterans Administration hospitalization, treatment, examination or training are not included); and

(1) The veteran died in service or after separation from service provided such separation was under conditions other than dishonorable; and

(2) The child meets the definitions of relationship contained in § 3.57 except as to the requirement of age and marital status.

(b) *Service.* Active service is required during:

(1) Spanish-American War between April 21, 1898, and July 4, 1902, or, if the veteran served with the United States military forces engaged in hostilities in the Moro Province, between April 21, 1898, and July 15, 1903 (effective September 8, 1959);

(2) World War I between April 6, 1917, and November 11, 1918 (effective October 1, 1956), or, if the veteran served with the United States military forces in Russia, between April 6, 1917, and April 1, 1920 (effective January 1, 1959);

(3) World War II between December 7, 1941, and December 31, 1946 (effective October 1, 1956);

(4) Korean conflict between June 27, 1950, and January 31, 1955 (effective October 1, 1956); or

(5) An induction period (effective September 14, 1960). "Induction period" means the following periods: September 16, 1940, through December 6, 1941; January 1, 1947, through June 26, 1950; February 1, 1955, through the day before the first date on which the individual was no longer liable for induction. Service during the induction period which is deemed to be active service under 38 U.S.C. 106 is not included.

(c) *Service connection.* (1) In claims based on service during a war period as limited by paragraph (b) of this section, the standards and criteria for determining service connection, either direct or presumptive, based on wartime service are applicable.

(2) In claims based on service during an induction period, the standards and criteria for determining service connection based on peacetime service are applicable where the disease or injury directly resulted from armed conflict or was directly incurred while engaged in extra-hazardous service (including such service under conditions simulating war).

(3) Except as provided in subparagraph (2) of this paragraph, in claims based on service during an induction period, the cause of death, either primary or contributory, must have resulted directly from, and the causative factor must have been, the performance of such service while on duty status. It must be shown that it is reasonable to expect that the disease or injury would not have been incurred if the individual had not been performing active service. (38 U.S.C. 1701)

3. In § 3.809, paragraph (b) is amended and paragraph (d) is added to read as follows:

§ 3.809 Specially adapted housing.

* * * * *

(b) *Disability.* The disability must have been incurred or aggravated as the result of service as indicated in paragraph (a) of this section and the veteran must be entitled to compensation for permanent and total disability due to:

(1) Effective September 8, 1959, the loss, or loss of use, of both lower extremities, such as to preclude locomotion without the aid of braces, crutches, canes, or a wheelchair, or

(2) Effective September 8, 1959, blindness in both eyes, having only light perception, plus the anatomical loss or loss of use of one lower extremity, such as to preclude locomotion without the aid of a wheelchair.

* * * * *

(d) *"Preclude locomotion."* This term means the necessity for regular and constant use of a wheelchair or other mechanical aid or contrivance as a normal mode of locomotion although occasional locomotion by other methods may be possible. (38 U.S.C. 801, 804)

(72 Stat. 1114; 38 U.S.C. 210)

These regulations are effective February 21, 1962.

[SEAL] W. J. DRIVER,
Deputy Administrator.

[F.R. Doc. 62-1747; Filed, Feb. 20, 1962; 8:49 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2612]

[1330209]

NEW MEXICO

Revoking Executive Order No. 5120 of May 17, 1929

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 5120 of May 17, 1929, withdrawing the following described lands for use by the Smithsonian Institue, is hereby revoked:

NEW MEXICO PRINCIPAL MERIDIAN

T. 26 S., R. 2 W.,
Sec. 4, SW¼SW¼;
Sec. 5, SE¼SE¼;
Sec. 8, NE¼NE¼;
Sec. 9, NW¼NW¼.

The areas described aggregate 160 acres.

2. The lands, which are approximately 25 miles southwest of Las Cruces, New Mexico, are located in an isolated, rugged area occupied by an extinct volcano. Vegetation is scattered and limited to yucca, mesquite, and creosote brush.

3. The State of New Mexico has waived the preference right granted to it by subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852).

4. The public lands released from withdrawal by this order shall at 10:00 a.m., on March 22, 1962, be restored to operation of the public land laws, including location for nonmetalliferous minerals under the United States mining laws, subject to valid existing rights and equitable claims, the requirements of applicable law, rules and regulations, and the provisions of any existing withdrawals. They have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, New Mexico.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

FEBRUARY 14, 1962.

[F.R. Doc. 62-1736; Filed, Feb. 20, 1962; 8:48 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

PART 1—PRACTICE AND PROCEDURE

Computation of Time; Correction

The Commission's Order of February 6, 1962, FCC 62-122, (F.R. Doc. 62-1520; 27 F.R. 1359), is corrected as follows:

1. Section 1.18(g) is corrected to read as follows:

(g) Where a document is required to be served and is served by mail, and the filing period for a response thereto is 10 days or less, an additional three days, excluding holidays, will be allowed for filing the response. This paragraph shall not apply to § 1.193(c).

Released: February 13, 1962.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F.R. Doc. 62-1772; Filed, Feb. 20, 1962; 8:51 a.m.]